

1 ENGROSSED HOUSE
2 BILL NO. 4392

By: Miller of the House

3 and

4 Hines of the Senate
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7 An Act relating to aerospace; creating the
8 Sustainable Emerging Aviation Services Investment
9 Program; defining terms; requiring certain
10 designations; requiring specific requirements be met;
11 allowing for certain investments; prohibiting certain
12 investments; providing for the promulgation of rules;
13 creating the Sustainable Emerging Aviation Services
14 Investment Program Revolving Fund; establishing
15 revolving fund characteristics; declaring funds
16 appropriated; providing for codification; and
17 providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 600 of Title 3, unless there is
created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Sustainable
Emerging Aviation Services Investment Program (SEA SIP)".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 601 of Title 3, unless there is
created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Advanced Air Mobility" or "AAM" shall mean the definition
2 found in the FAA Reauthorization Act of 2024, P.L. 118-63, Section
3 951; 138 Stat. 1375;

4 2. "Department" shall refer to the Oklahoma Department of
5 Aerospace and Aeronautics;

6 3. "Emerging Aviation Services" shall refer to either AAM,
7 SUAS, or nontraditional aircraft;

8 4. "Nontraditional aircraft" shall refer to aircraft, systems,
9 and operations that are being integrated into the National Airspace
10 System (NAS), including all other forms of Electric Vehicle Takeoff
11 and Landing (EVTOL), Alternate Power Plant, Short Takeoff and
12 Landing (STOL), and Autonomous Aircraft that are larger than fifty-
13 five (55) pounds but less than one thousand three hundred twenty
14 (1,320) pounds capable of carrying cargo or human passengers and may
15 operate under 14 CFR, Part 107 with appropriate waivers, Part 91,
16 Part 135, Part 137, and Part 141 operations or those technologies
17 that have a maximum takeoff weight greater than one thousand three
18 hundred twenty (1,320) pounds and that do not fit the definition of
19 Advanced Air Mobility or Small Uncrewed Aerial Systems;

20 5. "Site" shall mean a public entity engaged in a partnership
21 or collaboration for the purposes of this act;

22 6. "Small Uncrewed Aerial Systems (SUAS)" or "drone" shall
23 refer to unmanned aircraft weighing less than fifty-five (55) pounds
24 gross weight on takeoff; and

1 7. "Supporting airport" shall refer to a public use airport
2 that is included in the Oklahoma Airport System Plan.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 602 of Title 3, unless there is
5 created a duplication in numbering, reads as follows:

6 A. The Oklahoma Department of Aerospace and Aeronautics shall
7 designate not less than five sites as Advanced Air Mobility (AAM)
8 pilot sites within the state. Such sites shall be eligible for AAM-
9 specific support and regulatory assistance; provided, the site meets
10 program guidance as issued by the Department. Of the designated
11 sites, not less than two sites shall be designated as supporting
12 airports and demonstrate a commitment to publicly operated AAM
13 infrastructure, the public benefit of such technology, and a pathway
14 to financial stability.

15 B. The Department may approve and provide funding opportunities
16 at approved sites for infrastructure, equipment, software, or other
17 needs the site may have to work with AAM companies, operators, and
18 supportive industries. The Department shall not approve funding for
19 research and development opportunities nor the purchase of
20 nontraditional aircraft or small uncrewed aerial systems (SUAS).
21 The Department shall retain ownership of any asset it invests in.
22 Sites shall be required to sign agreements acknowledging that the
23 Department retains the ownership of the asset. The Department may
24 enter into agreements with the site or approved operators to recoup

1 the financial investment the Department has made in the asset. Such
2 funds shall be deposited in the Sustainable Emerging Aviation
3 Services Investment Program (SEA SIP) Revolving Fund created in
4 Section 4 of this act.

5 C. The Department shall promulgate rules for SEA SIP.

6 D. Beginning July 1, 2027, and every year thereafter, the
7 Department shall submit a report to the Governor, the Speaker of the
8 Oklahoma House of Representatives, the President Pro Tempore of the
9 Oklahoma State Senate, the Appropriations and Budget chair of the
10 Oklahoma House of Representatives, the Appropriations chair of the
11 Oklahoma State Senate, the Appropriations and Budget Transportation
12 Subcommittee chair for the Oklahoma House of Representatives, and
13 the Appropriations General Government and Transportation
14 Subcommittee chair for the Oklahoma State Senate. The report shall
15 detail what funds have been expended throughout the year, what
16 projects have been commenced, what projects are ongoing, what
17 projects were completed, what, if any, maintenance is required of
18 the projects, and what revenues were received from the project.

19 SECTION 4. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 603 of Title 3, unless there is
21 created a duplication in numbering, reads as follows:

22 There is hereby created in the State Treasury a revolving fund
23 for the Oklahoma Department of Aerospace and Aeronautics to be
24 designated the "Sustainable Emerging Aviation Services Investment

1 Program (SEA SIP) Revolving Fund". The fund shall be a continuing
2 fund, not subject to fiscal year limitations, and shall consist of
3 all monies received by the Department as directed by law, from
4 federal and state grants or appropriations, from private donations,
5 and from revenues or fees recouped from assets in which the
6 Department invests. All monies accruing to the credit of said fund
7 are hereby appropriated and may be utilized in accordance with the
8 provisions of the Sustainable Emerging Aviation Services Investment
9 Program. Expenditures from said fund shall be made upon warrants
10 issued by the State Treasurer against claims filed as prescribed by
11 law with the Director of the Office of Management and Enterprise
12 Services for approval and payment.

13 SECTION 5. This act shall become effective November 1, 2026.

14 Passed the House of Representatives the 25th day of March, 2026.

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Presiding Officer of the House
of Representatives

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19 Passed the Senate the _____ day of _____, 2026.

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Presiding Officer of the Senate

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